

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
MARTINEZ, CA
DEPARTMENT 14
JUDICIAL OFFICER: KIRK ATHANASIOU
HEARING DATE: 07/14/2026

For matters where an appearance is required, the parties should appear by Zoom unless told to appear by another method. For all other matters, if argument is requested appearances may be in person or by Zoom.

Zoom hearing information

<https://contracosta-courts-ca.zoomgov.com/j/16103009385?pwd=TjFZRDBnNkVQRiV0Znhvai9qT05tZz09#success>

NOTE: Any party contesting a tentative ruling below must email Dept14@contracosta.courts.ca.gov and opposing parties by 4:00 p.m. on the court day prior to the hearing (7/13/26). If oral argument is requested, the requesting party shall specify the issues to be argued. If properly contested, the hearing will take place on 7/14/26 at 2:00 p.m.

Courtroom Clerk's Session

1. 9:00 AM CASE NUMBER: L23-02492
CASE NAME: CAPITAL ONE, N.A. VS. KENDALL AUSTIN
MOTION HEARING/ MINUTE ORDER SET ASIDE DISMISSAL AND ENTER JUDGMENT UNDER STIPULATION
FILED BY: CAPITAL ONE, N.A.
TENTATIVE RULING:

Any party contesting this tentative ruling must email Dept14@contracosta.courts.ca.gov and opposing parties by 4:00 p.m. on the court day prior to the hearing (7/13/26). If oral argument is requested, the requesting party shall specify the issues to be argued. If properly contested, the hearing will take place on 7/14/26 at 2:00 p.m.

Plaintiff filed a Motion to Set Aside Dismissal and Enter Judgment, per stipulation. The Motion had originally been scheduled for 4/21/26, but on that day, this court found that service on Defendant was ineffective, and continued to the Motion to 7/14/26. This court also ordered Plaintiff to provide notice of the Motion and of the 7/14/26 hearing to Defendant.

Specifically, this court found that the mailing address used by Plaintiff (Pleasant Hill) to provide notice of the Motion to Defendant was different than that where Plaintiff had served Defendant with process (Concord).

Plaintiff has filed proof of service, on 5/29/26, indicating that they have now provided notice of the 7/14/26, Motion hearing to Defendant at the Concord address, which is the same address as that where Defendant was personally served with process.

However, their proof of service only indicates that they provided Defendant with notice of the hearing, and not with a copy of the Motion.

Thus, there is no evidence that Defendant is aware of the contents of the Motion.

Disposition

This Motion will be dropped.

**2. 9:00 AM CASE NUMBER: L25-01908
CASE NAME: JPMORGAN CHASE BANK, N.A. VS. VERNELL MCCALL
MOTION HEARING/ MINUTE ORDER MTC RESPONSES TO REQ. FOR ADMISSIONS,
INTERROGATORIES, AND REQ. FOR PROD. OF DOCS
FILED BY: MCCALL, VERNELL**

TENTATIVE RULING:

Any party contesting this tentative ruling must email Dept14@contracosta.courts.ca.gov and opposing parties by 4:00 p.m. on the court day prior to the hearing (7/13/26). If oral argument is requested, the requesting party shall specify the issues to be argued. If properly contested, the hearing will take place on 7/14/26 at 2:00 p.m.

Defendant has filed a Motion to Compel further discovery responses.

The Motion is unopposed, however, the Motion was originally scheduled for 4/21/26. On that date, this court found that Defendant had not provided any notice to the Plaintiff, and continued the matter to 7/14/26. This court also ordered Defendant to provide notice of the Motion and hearing date to Plaintiff.

There is no evidence that Defendant has provided this notice.

Disposition

This Motion will be dropped.